

December 2, 2025.

Disposition

The Court further finds and orders as follows:

1. **PARTIES ARE ORDERED TO APPEAR** to address their meet and confer regarding the Motion to Deem Admissions, unless the matter is resolved, in which case, the parties may advise the departmental clerk that the motion is to be dropped from calendar.

7. 9:00 AM CASE NUMBER: L25-04949
CASE NAME: SOUTHWOOD FINANCIAL LLC AS TRUST MANAGER FOR SOUTHWOOD FINANCIAL TRUST I VS. TAYLOR LOVE
*HEARING ON MOTION IN RE: ORDER DEEMING REQ FOR ADMIS TO DEF ADMIT AND FOR MONETARY SANCTIONS
FILED BY: SOUTHWOOD FINANCIAL LLC AS TRUST MANAGER FOR SOUTHWOOD FINANCIAL TRUST I
TENTATIVE RULING:

Plaintiff Southwood Financial LLC (“Plaintiff”) filed a Motion for Order Deeming Request for Admissions to Defendant Admitted and for Monetary Sanctions on September 29, 2025 (the “Motion to Deem Admissions”). The Motion to Deem Admissions was set for hearing on December 16, 2025. The motion is opposed.

Background

Plaintiff served Defendant Taylor Love (“Defendant”) with a Requests for Admission (Set One). See Declaration of Laura M. D’Anna filed September 29, 2025 (“Supporting Declaration”), ¶2 and **Exhibit 1** thereto (the “RFAs”). The RFAs were served on July 10, 2025 by mail. *Id.* at ¶2 and **Exhibit 1** [attached Proof of Service dated July 10, 2025 (the “Proof of Service”)].

With a five calendar day extension for service of the RFAs by mail, the responses were due to be served on or before August 14, 2025 (30 days from and after July 10, 2025 was August 9, 2025 and five calendar days thereafter fell on August 14, 2025). No responses were received by that deadline or through the time of the filing of the motion. See *id.* at ¶3.

Defendant filed an opposition paper. See Defendant’s Opposition to Plaintiff’s Motion to Deem Requests for Admission Admitted and for Monetary Sanctions filed December 2, 2025 (“Opposition”). Defendant indicates that “Defendant misunderstood that further discovery responses were needed given ongoing negotiations, but has now served verified responses.” See Opposition, p.2; see also Declaration of Taylor Love filed December 2, 2025 (“Opposition Declaration”) ¶7.

No reply papers have been filed with the Court.

Analysis

Civil discovery in California is governed by the Civil Discovery Act. See Code Civ. Proc. §§ 2016.010–2036.050. The Civil Discovery Act provides litigants with the right to broad discovery. *Sinaiko Healthcare Consulting, Inc. v. Pacific Healthcare Consultants* (2007) 148 Cal.App.4th 390, 402. In general, any party may obtain discovery regarding any matter, not privileged, that is relevant to the subject matter involved in the pending action or to the determination of any motion made in that action, if the matter either is itself admissible in evidence or appears reasonably calculated to lead to the discovery of admissible evidence. Code Civ. Proc. § 2017.010; see *Sinaiko Healthcare Consulting, Inc.*, *supra*, 148 Cal.App.4th at 402.

Where a party to whom requests for admission are directed fails to serve a timely response, the propounding party may seek a court order that the genuineness of any documents and/or the truth of any matters specified in the requests be deemed admitted pursuant to Code of Civil Procedure section 2033.280. See Code Civ. Proc. § 2033.280(b). The propounding party may also seek the imposition of monetary sanctions. *Id.* There is no meet and confer requirement for a motion to deem matters admitted under Section 2033.280. See *St. Mary v. Superior Court* (2014) 223 Cal.App.4th 762, 777.

A responding party's service, before the hearing on a "deemed admitted" motion, of substantially compliant responses, defeats a propounding party's attempt to have the requests for admissions deemed admitted. Code Civ. Proc. § 2033.280(c); *St. Mary v. Superior Court*, *supra*, 223 Cal.App.4th at 776; see also CJER, *California Judges Benchbook: Civil Proceedings - Discovery* (2024) ("CJER Civ. Proc. Discovery"), § 21.22. A monetary sanction remains strictly mandatory against the party or attorney, or both, whose late response necessitated the making of the motion. Code Civ. Proc. § 2033.280(c); see CJER Civ. Proc. Discovery, § 21.22.

Having considered the moving papers and any further pleadings submitted, the Court makes the following findings as to the discovery requests at issue:

1. Defendant was duly served with the subject RFAs.
2. No timely response was made to the RFAs by Defendant.
3. After the filing of the subject Motion to Deem Admissions, Defendant served Plaintiff with responses to the RFAs. Those responses were verified and substantially code compliant.

Sanctions

1. Defendant's failure to respond to the RFAs constitutes failing to respond to an authorized method of discovery, pursuant to Code of Civil Procedure section 2023.010(d).
2. The Court finds that the foregoing conduct by Defendant constituted conduct that was a misuse of the discovery process within the meaning of Code of Civil Procedure section 2023.030 and that such conduct warrants the imposition of monetary sanctions. In failing to timely respond to the RFAs, the Court finds that

Defendant did not act with substantial justification.

3. Moreover, monetary sanctions are mandatory pursuant to Code of Civil Procedure section 2033.280. Code Civ. Proc. § 2033.280(c); see *St. Mary v. Superior Court*, *supra*, 223 Cal.App.4th at 776 (“The court must also impose monetary sanctions upon the party and/or the attorney for the failure to serve a timely response to the RFAs.”).
4. The Court has considered the appropriate amount of monetary sanctions. In fixing the amount of monetary sanctions, the Court has considered all evidence in the record before the Court, including the Supporting Declaration and Opposition Declaration. The Supporting Declaration contain what appear to be erroneous statements as to scope of work performed, referencing “reviewing the evasive responses, drafting the meet and confer correspondence...” See Supporting Declaration, ¶15. No discovery responses had been received as of the date of the original Supporting Declaration and no meet and confer was described in the Supporting Declaration, so these portions of the described work appear to be in error. Moreover, the other estimated time did not come to pass, as responses were served and no reply filed. In addition, as noted above, the amount of sanctions is mitigated by the service of substantially code compliant responses after the filing of the motion. The Court reduces the time to one half hour (0.50 hrs.) at the stated hourly rate of \$250.00, plus a \$60.00 filing fee. The Court finds that such sanctions are reasonable expenses, including attorneys’ fees, incurred by Plaintiff as a result of the foregoing sanctionable conduct by Defendant.

Disposition

The Court further finds and orders as follows:

1. The Motion to Deem Admissions is DENIED IN PART and GRANTED IN PART.
2. Defendant shall pay monetary sanctions to Plaintiff in the amount of **\$185.00** (the “Monetary Sanctions”). The Monetary Sanctions shall be paid within thirty (30) days from notice of entry of this order. The motion is otherwise DENIED.
3. The Court shall issue the order after hearing.

8. 9:00 AM CASE NUMBER: L25-05764

CASE NAME: CAPITAL ONE N.A. VS. ALLEN BREZAC

***HEARING ON MOTION IN RE:**

FILED BY: CAPITAL ONE N.A.

TENTATIVE RULING:

Plaintiff Capital One, N.A. (“Plaintiff”) filed a Motion for Order that Matters in Request for Admission of Truth of Facts be Deemed Admitted on October 6, 2025 (the “Motion to Deem Admissions”). The Motion to Deem Admissions was set for hearing on December 16, 2025.